

Several large organisations have teams of people to create and implement trademarks. This team also maintains correct and exclusive use of the appropriate logos and marks internally and externally. The appropriate colours and size should be discussed before finalising. It should immediately be something the consumer can associate the product with. Think apple products. Think of the biblical bitten apple from the tree of knowledge. Your trademark must be a visually appealing combination of alpha-numeric and images done in the correct fonts, colours and size.

The main functions of a trademark would be brand identification, exclusivity of usage to the brand and help in advertisement of products or services. Trademark can be considered to be just another form of an asset. Much like real-estate, they can be sold, licensed or re-assigned. Mostly, this is seen to be the owners' or founders' name or someone close to them. It can be a newly coined trendy word that will stick with consumers. They can be monograms, three-dimensional shapes, letters and on some occasions, sound marks.

How to go about getting a trademark in our country?

It happens only in India

OK now let's get into the nitty-gritty of actually getting a trademark registered in India. All trademarks are registered under the Trademarks Act, 1999. The overlord of this act is the Ministry of Commerce which discharges this function through the Controller General of Patents Designs and Trademarks. Through this act, the Government of India provides protection to the business owners who have registered their trademark with the department. The protection accords the owner the right to file a case against any individual who copies or partly uses their symbol. This protection is not merely responsive, it is also proactive on the Government's part – it does not allow for the registration of any trademark which is identical or deceptively similar to an existing registered one. Give credit where credit is due, kudos to the Government!

Who can apply for a trademark?

An individual, company, proprietor or legal entity claiming to be the owner of the trademark can apply for one. The application for it can be filed within a few days of creating it and you can start using the TM (Trademark symbol). Usually, the time required to complete formalities is 18 to 24 months. You may use the ® (Registered symbol) next to your trademark once it is registered and registration certificate is issued. Once registered, it is valid